



FEDERAL BUREAU OF INVESTIGATION

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION

JUSTIFICATION AND APPROVAL (J&A) FOR OTHER THAN FULL AND OPEN COMPETITION



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION IN ACCORDANCE WITH 41 U.S.C. 3304 (A) (X)

Requisition [REDACTED]

Date: **February 7, 2025**

Estimated Contract Dollar Value: [REDACTED]

1. Identification of the agency and contracting activity.

The U.S. Department of Justice, Federal Bureau of Investigation (FBI), *National Acquisition Programs Unit (NAPU)*, has prepared this justification for other than full and open competition for *replacement carbine parts* on behalf of the *Defensive Systems Unit (DSU)*, *Training Division (TD)*.

2. The nature and/or description of the action being approved, i.e., sole source, limited competition, establishment of a new source, etc.

It is the intent of the DSU to establish a new, brand name specific, firm fixed price Indefinite Delivery Indefinite Quantity (IDIQ) contract for Colt Original Equipment Manufacturer (OEM) carbine replacement parts. The period of performance will be for a one (1) year base, with four (4) possible one-year option periods beginning on June 18, 2025.

3. A description of the supplies or services required to meet the agency's needs.

The FBI's DSU is responsible for the acquisition, maintenance, and destruction of FBI firearms. With approximately 12,000 carbines in inventory, DSU has an adequate supply of carbines to assign one (1) to every operational agent in the FBI (note: FBI personnel assigned to headquarters and other field office managerial positions are not required to have a carbine assigned). DSU does not have a requirement for completed carbines; rather, they have a requirement to maintain the existing fleet of carbines.

DSU maintains the FBI's gunsmiths, who are tasked with performing routine preventative maintenance to all FBI firearms, including FBI carbines. To maintain those weapons in good working order, DSU performs weapons inspections on every firearm after, approximately, 5,000 rounds fired. For general agents, this may be one (1) preventative maintenance inspection every five (5) years, while for SWAT or HRT personnel, the maintenance may be required more frequently [e.g., every eighteen (18) months].



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A standard Colt-pattern carbine contains up to 184 individual components or sub-assemblies. As part of the DSU Gunsmith preventative maintenance inspection, certain high-wear components of the weapon system area automatically replaced (e.g., gas tube, gas block, buffer spring, bolt, barrel, etc.). These are weapon components that take the direct impact from firing cartridges (approximately 55,000 p.s.i. per round fired). While certain high-wear components are always replaced, the Gunsmiths are required to inspect all individual components and replace any/all components which appear damaged or worn excessively. Some individual components (e.g., take down pins, bolt carriers, charging handles, etc.) may need less frequent replacement while other components such as the upper and lower receiver require even less frequent replacement. The requirement to replace individual components is left to the discretion of the Gunsmith based on their inspection.

On average, DSU conducts approximately 3,000 preventative maintenance inspections on carbines per year. To maintain the FBI's existing fleet of carbines, DSU requires a contract for brand name specific Colt OEM parts that will provide them the ability to buy any/all the nearly 184 different components of the FBI's current carbines.

DSU received enterprise-wide funding from FBIHQ to maintain all service weapons across the FBI. The cost to conduct a routine preventative maintenance inspection varies based on the number of components replace. The DSU Gunsmiths routine replace, approximately, \$300 worth of components. Depending on the amount of wear-and-tear on the carbine, that repair cost can increase. Nonetheless, the FBI spends considerably less on weapons maintenance and repair compared to the purchase of a new firearm.

DSU requires the vendors to provide commercially available brand name specific Colt OEM parts for the replacement and maintenance of the FBI's 12,000 currently owned carbines. As these products are used in defense of life, the FBI does not want to risk acquiring components that are not compatible. The estimated total cost to acquire the replacement parts required is approximately [REDACTED] for the total period of performance.

4. The statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. 3304(a)(1) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.302-1(c)(1) entitled, "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements." (Brand Name Specification)



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5. Demonstrate the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority.

Functional Reliability – Functional reliability is simply the reliability of the weapon system functioning as designed. In a very simplistic way, it's wanting to ensure that the weapon fires the round every time the trigger is pressed (and does not fire when it's not). The FBI prioritizes functional reliability of a firearm more than anything else. The functional reliability of a service firearm is essential to the chances of surviving a gun fight. A failure of an FBI firearm in a gunfight would necessarily result in risk of death or serious physical injury to the FBI personnel and, potentially, members of the public. This "zero-failure" attitude towards firearms has led the FBI to a process of conducting routine preventative maintenance on all FBI firearms. The preventative maintenance is designed to proactively identify and replace firearm components before they fail.

The FBI has a minimum functional reliability requirement of no more than 1 stoppage in 2,000 rounds fired. Any decrease in functional reliability is unacceptable.

Compatibility – To ensure compatibility with the FBI's current weapon system, the FBI requires Colt OEM parts. These OEM parts are needed to meet the exact specifications for the existing carbines. Using non-OEM parts could result in compatibility issues (for example, the location of a takedown pin may be in a different spot, the upper and lower receivers may not mirror up, handguards may not fit over gas blocks, the size of the gas port may be different, etc.), resulting in a decrease in functional reliability (i.e. a decrease in the carbine firing every time an agent pulls the trigger or an increase in the carbine firing on its own). This increases the liability of the FBI because a gun that doesn't shoot in a gunfight or shoots on its own results in dead agents and possible members of the public.

Standardization – OEM parts are also required to bring consistency and efficiency back to the Bureau. DSU's gunsmiths are often receiving carbines to inspect and maintain. Due to this, it is essential that all existing carbines have the same configuration to increase efficiency for the gunsmith's procedures. It also standardizes the investigation procedures for the carbines after they have been fired. With the composition of the carbine being the same it allows the investigators within the Ballistics Research Facility (BRF) to test the same materials, parts, and proprietary elements unique to the Colt carbine throughout the entire Bureau. This also mitigates having to change their evaluation procedure anytime they receive a carbine that doesn't have the same parts as the one before it. Also, when agents send their carbine in for maintenance, they are issued a "loaner" carbine. Having a standardized "Bureau Pattern Carbine (BPC) allows the Agent to be issued the same weapon configuration that they have been using and training with. Finally, the Firearms Training Unit needs their New Agency



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Trainees (NAT) to all have their weapons configured the same for consistency in training and weapon familiarization. If weapons are configured differently, it's difficult to ensure the training regimen is the same from one NAT to the next.

Background on Requirements for FBI Carbines

When the FBI transitioned from sub-machine guns to carbines, we followed standards created by the U.S. Department of Defense and documented as "MilSpec." MilSpec or Military Specification is a set of standardization requirements and performance criteria covering qualities such as durability, reliability, interoperability, and environmental resilience, which must be met for military equipment. These standards set a baseline for quality and uniformity.

Beyond MilSpec, the DOD has comprehensive collections of detailed documents, drawings, and instructions specifying exactly how to manufacture, assemble, inspect, and maintain a particular item. For firearms, it includes exact dimensions, tolerances, materials, assembly procedures, and testing methods required to ensure compatibility and performance.

To ensure high standards, the FBI has required MilSpec. In the case of carbines (or firearms in general), it ensures precise replication of a product, which ensures interchangeability of parts. This is essential for replacement parts for existing firearms. This is important because it helps contain the technical and engineering details needed to make an item to the exact specification. They serve as actionable blueprints and instructions for producing a compliant product.

In the case of the DOD carbines, they include detailed diagrams with exact measurements, tolerances, and assembly requirements. They also specify material requirements, including the types of steel, aluminum, polymers, or coatings, as well as the properties they must meet, such as hardness, tensile strength, and corrosion resistance. They also outline the manufacturing process including machining, heat treatment, and surface finishing processes that parts must undergo to ensure durability, consistency, and compatibility.

The FBI benefits from utilizing the DOD's MilSpec. The FBI's existing fleet of carbines meet these requirements and to ensure compatibility and functional reliability, the replacement parts must continue to meet the MilSpec requirements.

Proprietary Elements in Colt Parts

For Colt carbines, certain proprietary aspects are embedded in its' structure reflecting Colt's unique designs, manufacturing methods, and intellectual property. These proprietary



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elements make Colt the only brand for specific parts or specifications. Proprietary elements of the Colt carbine include:

- *Certain design aspects of Colt carbines, such as the exact geometry of the bolt, barrel extension, and receiver, are proprietary. These details are Colt's intellectual property and ensure that only Colt or its authorized manufacturers can produce parts that fit exactly with existing Colt rifles.*
- *Colt utilizes proprietary alloys, steel compositions, or polymer formulations that aren't publicly specified. Likewise, Colt utilizes unique heat treatment and coating processes that enhance durability and corrosion resistance.*

Impact of Not Using Brand Name Justification

With 184 individual components with a Colt-pattern carbine, introducing non-Colt parts would lead to a nearly endless combination of Colt and non-Colt parts. The FBI has no ability to test every possible configuration to ensure compatibility. As such, the result would be to require the purchase of entirely new carbines in a tested and approved configuration. This would significantly increase the cost to the Government, when compared to the cost of repairing/maintaining the current weapons [note: Replacement of quality law enforcement duty carbines between \$2,000 - \$3,000 each]

- 6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies.**

This requirement will be posted SAM.gov as a brand name only, open market requirement. This announcement will give an opportunity for authorized resellers of Colt products to demonstrate their ability to meet the FBI's specific needs through a submission of their technical capabilities and cost information. A notice of intent is being publicized on SAM.gov.

- 7. The anticipated dollar value of the proposed acquisition, including options if applicable, and a determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.**

The anticipated dollar value of this award has a not-to-exceed ceiling estimated at [REDACTED], including the one (1) base year and four (4) possible one-year option periods. Prior to issuing award, the Contracting Officer will determine that the proposed price is fair and reasonable in accordance with FAR 15.404-1.



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8. A description of the market research conducted and the results.

BRF met with DSU Gunsmiths and other stakeholders to determine the salient characteristics and requirements for replacement parts. TD met with representatives of the CIRG, TD, and field office SWAT personnel, as well as representatives from other DOJ law enforcement agencies to collect requirements. BRF and TD also met with carbine manufacturers including Geissele, Troy, Daniel Defense, and Colt.

9. Any other facts supporting the use of other than full and open competition.

The FBI's BRF has conducted extensive functional reliability testing with the FBI's existing carbines. They have consistently met and exceeded the high standards required by the FBI for a duty-use carbine.

10. A listing of any sources that expressed a written interest in the acquisition.

A notice of intent is currently being issued. Therefore, companies will be given opportunity to express interest.

11. A statement of any actions the agency may take to remove or overcome any barriers to competition, if subsequent acquisitions are anticipated.

The actions of the BRF to identify potential sources possessing the ability to satisfy this and similar requirements are on-going. The FBI will continue to research the market to obtain as many available sources as possible, to ensure that there are other vendors who may be able to satisfy future requirements. In addition, the program office will ensure that barriers to competition are avoided.